

Ordinance

Version 3.4 released on 6/29/23
Use for all Ordinances including: TRO, Budget, Zoning, Declarations,
Trust Indentures, etc.



CITY COUNCIL USE ONLY	Tracking #: _____	CITY CLERK USE ONLY	
Date Received: _____	Committee: _____	☐ Scanned	Date: _____
Committee Date: _____	Hearing Date: _____	☐ Posted	Item #: _____
1 st Agenda Date: _____	2 nd Agenda Date: _____		

All department items requiring Council approval must be submitted through the Mayor's Office.

Primary Details

Dept. Tracking No. Z-7745	Board Approval Tulsa Metropolitan Area Planning Commission	Other Board Name _____	City Council Approval ☒ Yes ☐ No
Department Department of City Experience	Contact Name Susan Miller	Email smiller@cityoftulsa.org	Phone 918-596-7130
Subject (Description) Rezoning from AG to IL		Ordinance Type Rezoning Land	
Section	Township	Range	Lot
Block	Address South and west of the intersection of E 11th St. S and the Creek Turnpike		BA / CT Number
Amending Ord. No.	TRO Title No. e.g. 43	TRO Subtitle e.g. G	Property/Non-Property Property
Council District 6	Zoning No. Z-7745	PUD No.	Planning District

Budget

Funding Source(s)

TOTAL:

Enter the funding source(s) using the appropriate Munis funding format: Org (Allocation Code)-Object-Amount (1001211-531401-\$10.00) or Project String-Amount (144104.AbstrTitle5413102.6001-4043122-541102-\$30,000.01)

Approvals

Department:	<u>Susan Miller</u>	Date:	<u>11/16/23</u>
Legal:	_____	Date:	_____
Board:	_____	Date:	_____
Mayor:	_____	Date:	_____
Other:	_____	Date:	_____

Policy Statement

Background Information

Applicant: Lou Reynolds, 2727 E 21st Street, Tulsa, OK 74114, 918-747-8900 rlreynolds@ellerdetrich.com

Owner: Fair Oaks Ranch LLC, c/o Eller & Detrich, 2727 E 21st Street, Tulsa, OK 74114, 918-747-8900 rlreynolds@ellerdetrich.com

The applicant is requesting to rezone approximately 340 ± acres from AG to IL to permit the construction of a data center and related uses.

Provide background information on the requested action.

Summation of the Requested Action

On November 1, 2023, TMAPC voted 9-0-0 to recommend approval of the rezoning from AG to IL.

Summarize the pertinent details of the requested action.

Emergency Clause?

☐ Yes

☒ No

Reason for Emergency Clause

Explain why you are requesting that the City Council approve this action with an emergency clause.

Processing Information for City Clerk's Office

Post Execution Processing

☐ Mail vendor copy (add'l signature copies attached)

☐ Must be filed with other governmental entity

☐ Add'l governmental entity approval(s) required

Additional Routing and Processing Details



Tulsa Metropolitan Area
Planning Commission

Case Number: Z-7745

Hearing Date: November 1, 2023

Case Report Prepared by:

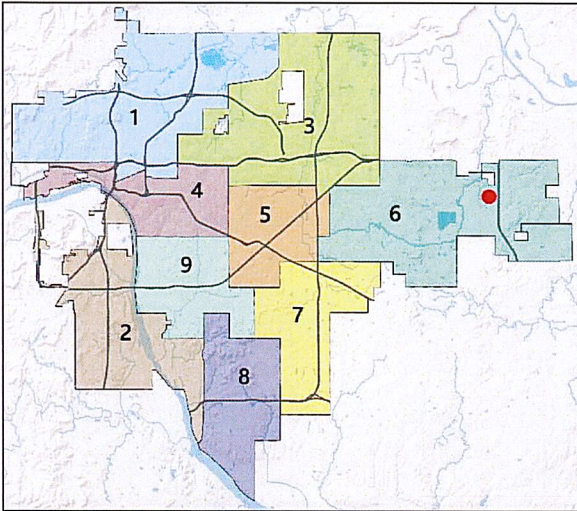
Nathan Foster

Owner and Applicant Information:

Applicant: Lou Reynolds

Property Owner: Fair Oaks Ranch, LLC

Location Map:
(shown with City Council districts)



Applicant Proposal:

Present Use: Vacant

Proposed Use: Data Center

Concept summary: Rezone subject property from AG to IL to permit the construction of a data center and related uses.

Tract Size: 340 $\pm$ acres

Location: South and west of the intersection of East 11th Street South and the Creek Turnpike

Zoning:

Existing Zoning: AG

Proposed Zoning: IL

Comprehensive Plan:

Land Use Map: Employment

Staff Recommendation:

Staff recommends approval of Z-7745 to rezone the site from AG to IL

City Council District: 6

Councilor Name: Christian Bengel

County Commission District: 1 - Wagoner

Commissioner Name: James Hanning

SECTION I: Z-7745

DEVELOPMENT CONCEPT: The applicant is proposing to rezone the subject property from AG to IL to permit construction of a data center with related uses. The property is roughly 340 acres of undeveloped land designated as Employment by the Tulsa Comprehensive Plan. The property is adjacent to the Creek Turnpike and East 11th Street.

EXHIBITS:

- Case map
- Aerial (small scale)
- Aerial (large scale)
- Tulsa Comprehensive Plan Land Use Map

DETAILED STAFF RECOMMENDATION:

The Tulsa Comprehensive Plan designates this property as Employment. IL zoning aligns with the recommendations for the Employment land use designation in this area.

The property is currently vacant and has never been developed. AG zoning was established upon annexation of the property.

The property is adjacent to the Creek Turnpike and has highway access via East 11th Street. When determining suitability for industrial uses, highway access and arterial street frontage are two critical components to serve the potential uses. The proximity of this property to the turnpike and adjacency to an arterial street are conducive to the requested IL zoning.

Staff recommends approval of Z-7745 to rezone the property from AG to IL.

SECTION II: Supporting Documentation

RELATIONSHIP TO THE COMPREHENSIVE PLAN:

Staff Summary: The subject property is designated as “Employment” by the Comprehensive Plan land use map. The proposed IL district aligns with the recommendations of the “Employment” land use designation in this area.

Land Use Vision:

Employment

The employment designation is intended to accommodate offices, warehousing and storage, manufacturing and assembly, and industrial processes. The “Industrial Site Suitability” map corresponds to the Employment land use designation and indicates where uses that are potentially incompatible with sensitive land uses are best suited to locate. This directs industrial uses to particular areas of the city while discouraging industrial in close proximity to Neighborhood areas.

The “Industrial Site Suitability” map found in the Tulsa Comprehensive Plan Development Review Guide designates this site as more suitable for industrial development. IL zoning would be compatible with the designation, but a more intense industrial zoning would not.

Transportation Vision:

Major Street and Highway Plan: East 11th Street South is designated as a secondary arterial requiring an ultimate right-of-way width of 100 feet. The Creek Turnpike is designated as a freeway with variable right-of-way requirements.

Trail System Master Plan Considerations: None

Small Area Plan: None

Special District Considerations: None

Historic Preservation Overlay: None

DESCRIPTION OF EXISTING CONDITIONS:

Staff Summary: The subject property is vacant and has never been developed. It is immediately adjacent to the Creek Turnpike along the entire east boundary. The primary frontage of the property is located on East 11th Street South which is designated as a secondary arterial. The surrounding properties consist of large undeveloped AG tracts with an existing single-family neighborhood to the north and northwest. The existing neighborhood area directly north is located within unincorporated Wagoner County and has not been annexed into the City of Tulsa.

Streets:

Existing Access	MSHP Design	MSHP R/W	Exist. # Lanes
East 11 th Street South	Secondary Arterial	100'	2
Creek Turnpike	Freeway	Variable	4

Utilities:

The subject tract has municipal water available. Public sanitary sewer is not available at the site and will require an extension to serve new development.

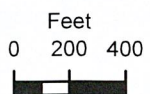
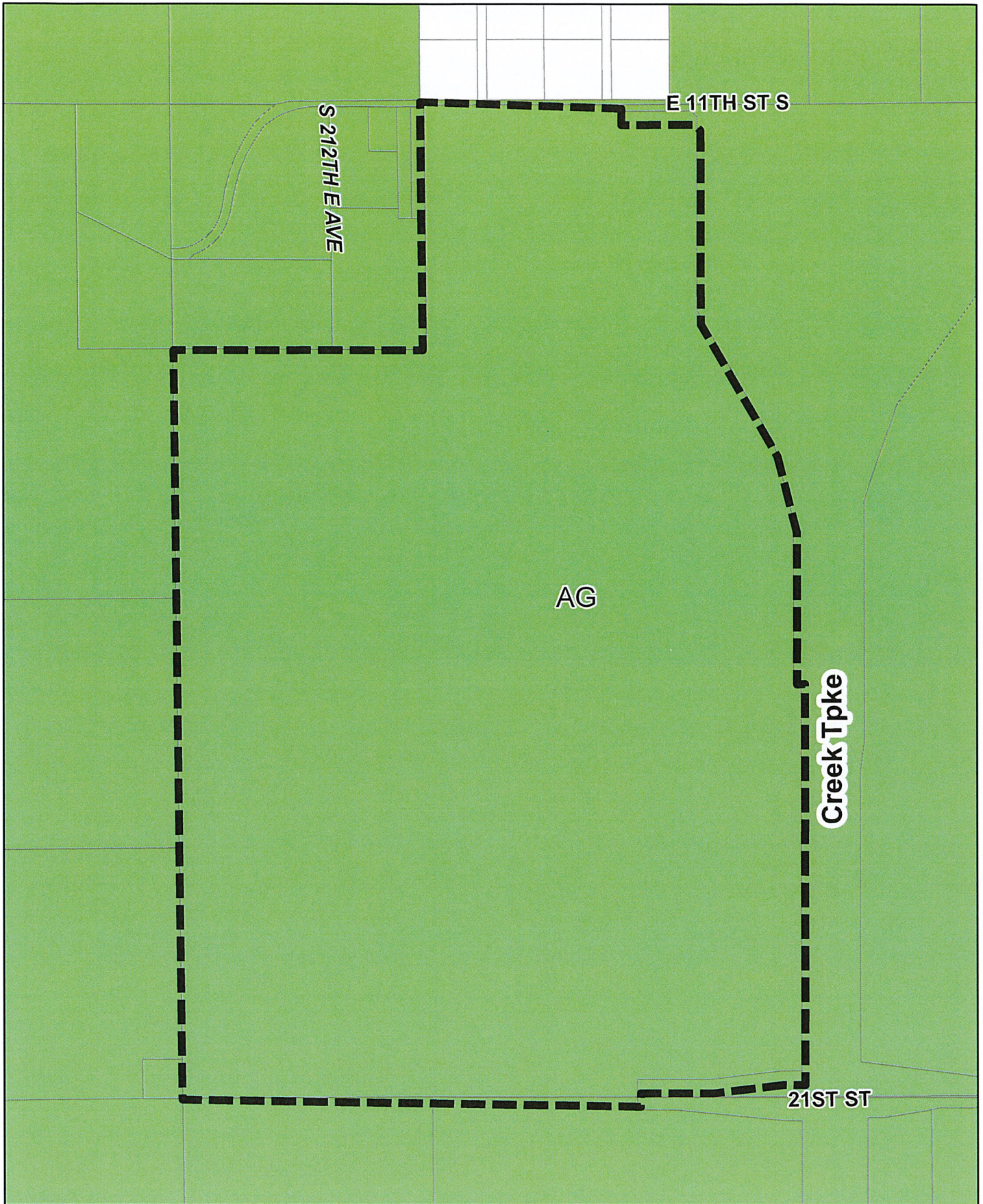
Surrounding Properties:

Location	Existing Zoning	Existing Land Use Designation	Existing Use
North	AG	None	Single-Family Residential
East	AG	Regional Center	Vacant/Creek Turnpike
South	AG	Employment	Vacant
West	AG	Neighborhood	Vacant/Single-Family Residential

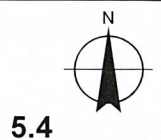
SECTION III: Relevant Zoning History

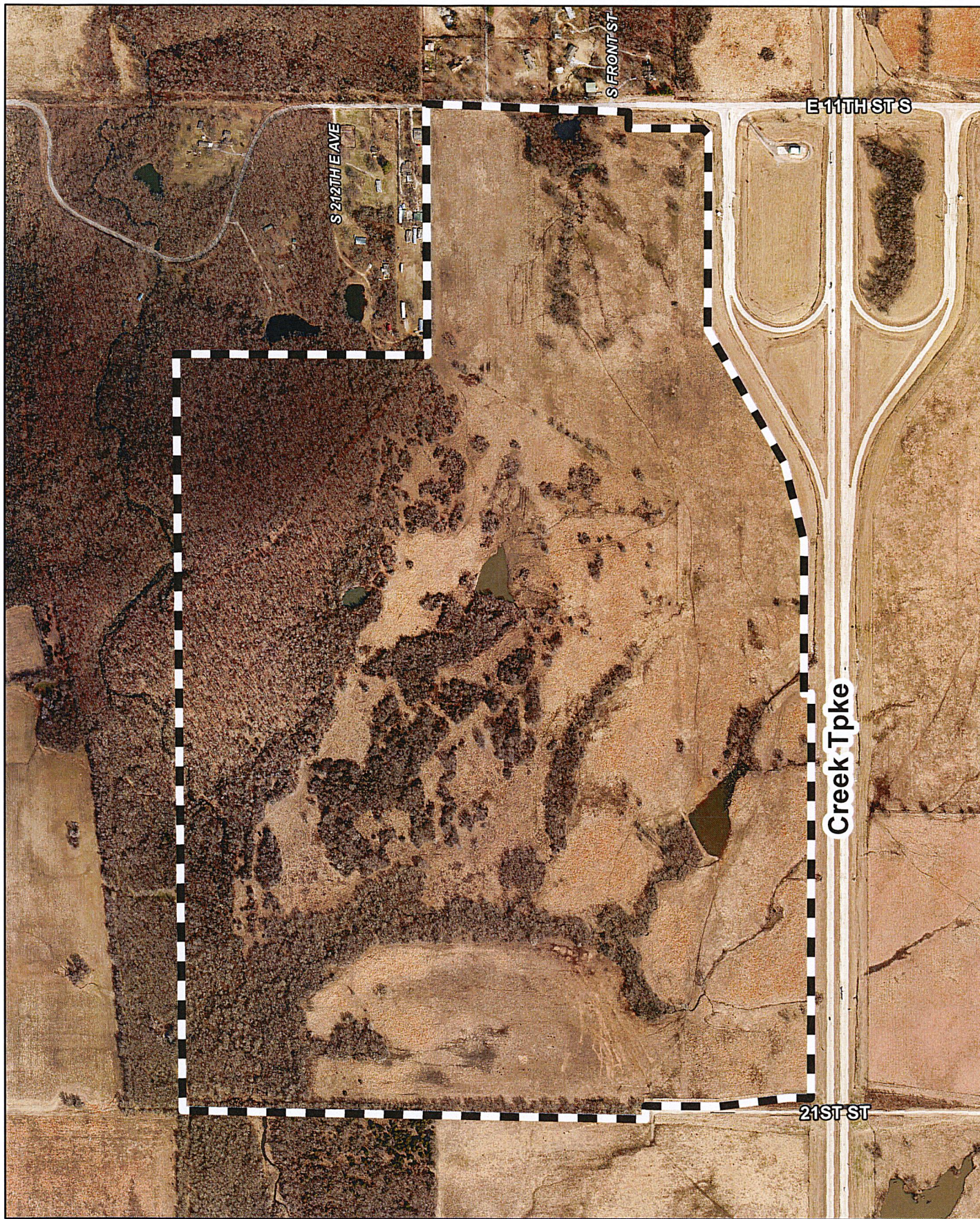
ZONING ORDINANCE: Ordinance number 20244 dated November 8, 2001, annexed the property into the City of Tulsa and established zoning for the subject property.

Ordinance number 20267 dated December 20, 2001, provided corrected legal descriptions for Ordinance number 20244.



Z-7745





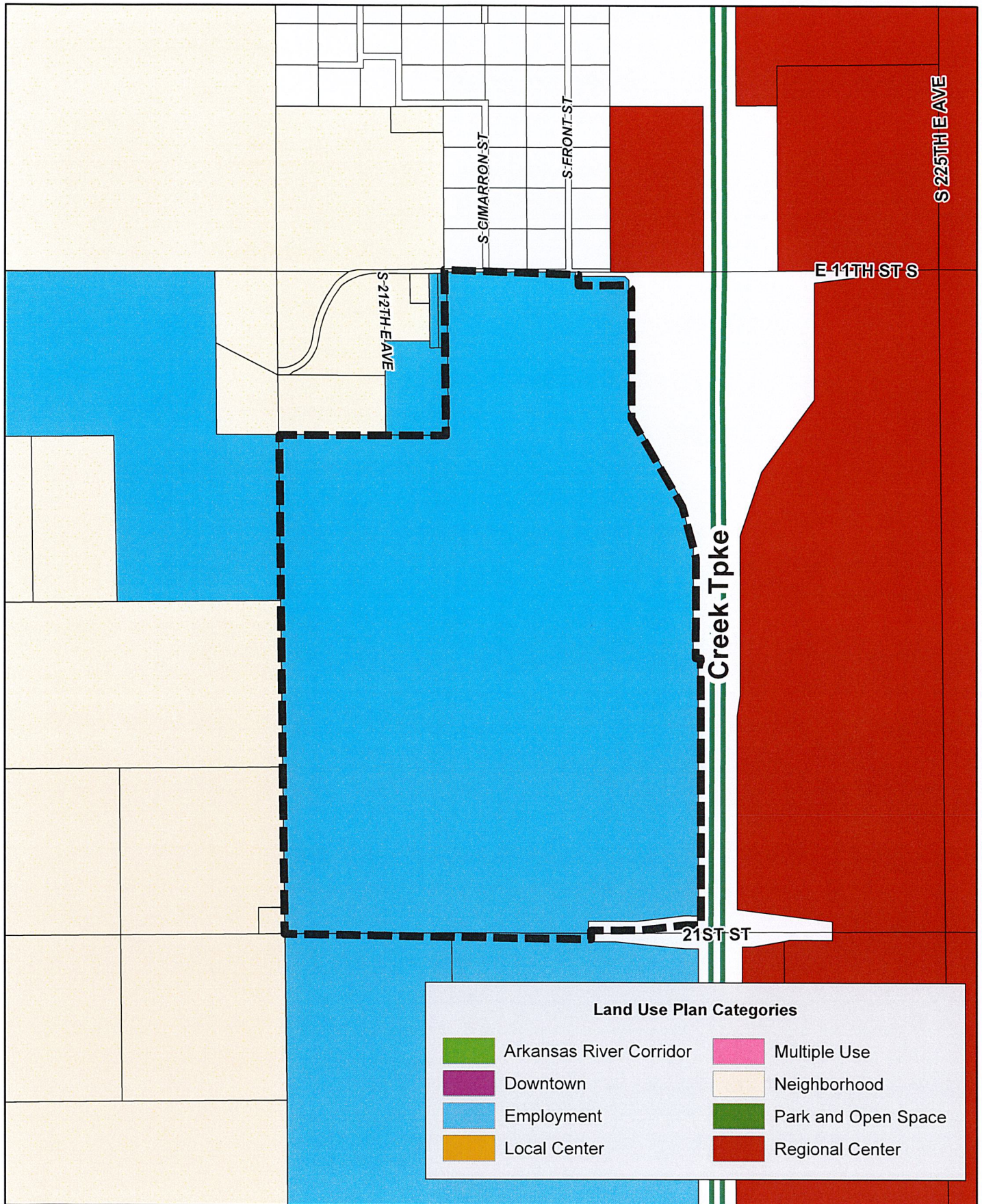
Z-7745

Note: Graphic overlays may not precisely align with physical features on the ground.

Aerial Photo Date: 2021



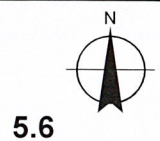
5.5



Feet
0 200 400



Z-7745



5. **Z-7745 Lou Reynolds** (CD 6) Location: South and west of the intersection of East 11th Street South and the Creek Turnpike requesting rezoning from **AG** to **IL**

STAFF RECOMMENDATION:
SECTION I: Z-7745

DEVELOPMENT CONCEPT: The applicant is proposing to rezone the subject property from AG to IL to permit construction of a data center with related uses. The property is roughly 340 acres of undeveloped land designated as Employment by the Tulsa Comprehensive Plan. The property is adjacent to the Creek Turnpike and East 11th Street.

DETAILED STAFF RECOMMENDATION:

The Tulsa Comprehensive Plan designates this property as Employment. IL zoning aligns with the recommendations for the Employment land use designation in this area.

The property is currently vacant and has never been developed. AG zoning was established upon annexation of the property.

The property is adjacent to the Creek Turnpike and has highway access via East 11th Street. When determining suitability for industrial uses, highway access and arterial street frontage are two critical components to serve the potential uses. The proximity of this property to the turnpike and adjacency to an arterial street are conducive to the requested IL zoning.

Staff recommends approval of Z-7745 to rezone the property from AG to IL.

SECTION II: Supporting Documentation

RELATIONSHIP TO THE COMPREHENSIVE PLAN:

Staff Summary: The subject property is designated as “Employment” by the Comprehensive Plan land use map. The proposed IL district aligns with the recommendations of the “Employment” land use designation in this area.

Land Use Vision:

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Transportation Vision:

Major Street and Highway Plan: East 11th Street South is designated as a secondary arterial requiring an ultimate right-of-way width of 100 feet. The Creek Turnpike is designated as a freeway with variable right-of-way requirements.

Trail System Master Plan Considerations: None

Small Area Plan: None

Special District Considerations: None

Historic Preservation Overlay: None

DESCRIPTION OF EXISTING CONDITIONS:

Staff Summary: The subject property is vacant and has never been developed. It is immediately adjacent to the Creek Turnpike along the entire east boundary. The primary frontage of the property is located on East 11th Street South which is designated as a secondary arterial. The surrounding properties consist of large undeveloped AG tracts with an existing single-family neighborhood to the north and northwest. The existing neighborhood area directly north is located within unincorporated Wagoner County and has not been annexed into the City of Tulsa.

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Surrounding Properties:

Location	Existing Zoning	Existing Land Use Designation	Existing Use
North	AG	None	Single-Family Residential
East	AG	Regional Center	Vacant/Creek Turnpike
South	AG	Employment	Vacant
West	AG	Neighborhood	Vacant/Single-Family Residential

SECTION III: Relevant Zoning History

ZONING ORDINANCE: Ordinance number 20244 dated November 8, 2001, annexed the property into the City of Tulsa and established zoning for the subject property.

Ordinance number 20267 dated December 20, 2001, provided corrected legal descriptions for Ordinance number 20244.

TMAPC Comments:

Mr. Covey asked if there was any IL zoning in the vicinity.

Staff stated "no," that this was a very large AG tract from residential properties in the area. He stated there were a lot of undeveloped tracts in this area.

Applicant Comments:

Lou Reynolds 2727 East 21st Street Tulsa 74114

The applicant stated this case involves about 340 acres of land. He stated this use is highly appropriate and fits with the old and new Comprehensive Plan. The applicant stated this change would be to allow a Data Center.

Interested Parties:

Corie Acree 1030 S Front Street, Catoosa, OK 74015

Ms. Acree stated she lives across the street from the subject property. She stated most of her questions are for the applicant. Ms. Acree asked where the entrances to the development would be. She asked would Evans Rd. be opened to 21st Street or 31st Street; will there be Turnpike exits at 21st Street due to the amount of traffic from project, and will there be traffic signals at Front Street or Cimarron also because of traffic. Ms. Acree stated they are hoping that there might be street lighting at 11th Street and that 11th Street would be improved between the Turnpike and 193rd Street, also known as County Line Road. She stated it is a two-lane road that the City of Tulsa resurfaced a few years ago and

they really appreciate that because it is a safety hazard with the very deep ravine and the curves makes it difficult to pass. Ms. Acree stated after the resurfacing there is a drainage problem in the area. She stated there are about 40 houses that have no high-speed internet and the only way for her to carry on a conversation on her cell phone was to sit on her 2nd step from the bottom and face east. Ms. Acree stated they currently do not have natural gas and asked if natural gas would be a possibility in their area. She asked if there would be a sound barrier or wall to protect them from the traffic. She asked will the industrial park be a giant concrete pad, or will it be nicely landscaped and something that they will be proud to live across the street from. Ms. Acree asked when construction would start. She would also like to know how this is going to affect their property values and that is what they are most concerned about.

Mike Raines 20313 East 11th Street, Tulsa, OK 74108

Mr. Raines stated they have 200 acres in the area. He stated they farm and have cattle and run a youth camp for young people. He stated it has been there since the 60's and was run by the Campfire until 2019. Mr. Raines stated the Campfire could not afford to run it any longer, so they took it over and made it available to the community at no cost. He stated they run hundreds of kids through it every year. Mr. Raines stated they did not learn about this rezoning until last week. He stated they tried to very quickly get up to speed by asking questions from a few people but have not received any answers. Mr. Raines stated his friend Jeff Stava reached out to the applicant but did not receive a call back. He stated they tried to reach staff and the City Councilor and a ton of other people with questions but no real answers. Mr. Raines stated their camp borders 1000 feet of the subject property, and they are concerned about the plan for building development, and they are happy that the first building will be over by the creek, but they are interested in what the rest of the development plan is going to be. Mr. Raines stated he believes the statutory setback is 75 feet from IL and they would like a larger setback than that, if possible, for privacy and for the security of their campers. He stated they own property on both sides of 11th Street, and he heard the applicant say that the plan was to get this rezoned and then to worry about the traffic plan and sewer later. Mr. Raines stated he also read in the agenda packet that there is a 100-foot easement that is going to be sought for the road and he would like to know where the easement will be located. He stated his mother's house is 80 feet from the road and will be encroaching on her house. Mr. Raines stated the proposed sewer easement is shown to run through their property and they have not been contacted by the City of Tulsa but were contacted by a private engineering company for the City a couple of weeks ago to engage in a discussion about a sewer easement. He stated the private company told them that the City will take 3000 feet of their property. He stated a 100 foot right of way will go through the camp property and through the picnic shelters, which has them concerned. Mr. Raines stated it will change the complexity and the privacy of their property. It will impact the facilities of the camp which is 25 acres with 3 1/2 miles of hiking trails, campsites, 4-acre park, a stocked pond with a fishing dock, covered and open picnic areas and office

facility and bathrooms. Mr. Raines stated they support the project. and understand how important this project is but the sheer scale of this first tract in what the Mayor says is going to be the largest industrial site in the United States, is concerning for them and what it will mean to their property values, their enjoyment and he has to believe that members of this Commission, if they were in the same position as these property owners they would want some questions answered too. He asks this Commission to delay the vote to allow some time to get their questions answered.

The applicant stated in the big picture this is how development progresses. He stated the zoning is established and then they do a traffic impact analysis and then the platting process. The applicant stated this is part of an overall Fair Oaks development plan. He stated there is \$62 million in ARPA money that is going to be spent on phase 1, bringing sewer lines from the lower Bird Creek wastewater treatment plant at the Port of Catoosa through this development down to 15th Street. He stated the next phase is to continue the same line to 25th or 26th Street. The applicant stated this will allow thousands of acres in East Tulsa to be opened for development. He stated the previous speakers have some interesting questions, but they are not zoning related questions, they're just related to what is going to happen. The applicant stated from traffic engineering standpoint intersections are lined up with streets and Front Street on the east and Cimarron Street on the west is where he believes access points will go unless something comes up in the traffic engineering analysis and they need to go somewhere else.

Mr. Zalk asked if there was already enough sewage and what was the discussion with the Engineers about the easement that would go through the adjacent property.

The applicant stated "yes". He stated the easement is needed to open this property up for development.

Mr. Zalk stated this easement will happen whether this case is approved or not.

The applicant stated "yes", the City is legally obligated to spend the ARPA money within a certain amount of time.

Mr. Whitlock stated he wanted to let the neighbors without high-speed internet know that if the infrastructure is upgraded, it will benefit the whole area.

Mr. Covey stated he doesn't have a problem with the rezoning, it fits within the Comprehensive Plan. As stated today is just for the rezoning.

TMAPC Action; 9 members present:

On **MOTION** of **WALKER**, the TMAPC voted 9-0-0 (Carr, Covey, Hood, Humphrey, Krug, Shivel, Walker, Whitlock, Zalk, "aye"; no "nays"; none

"abstaining"; Bayles, Craddock, "absent") to recommend **APPROVAL** of the IL zoning for Z-7745 per staff recommendation.

Legal Description for Z-7745:

Thence on the south line of said northwest quarter of the northwest quarter N88°59'14"E, 1319.08 feet to the southeast corner of the northwest quarter of the northwest quarter; Thence on the east line of said northwest quarter of the northwest quarter N01°34'23"W, 1320.26 feet to a point on the north line of the northwest quarter of said Section 8; Thence on said north line of the northwest quarter of Section 8 N89°00'04"E, 1066.01 feet to the west right-of-way line of Creek Turnpike; Thence on said west right-of-way line of Creek Turnpike for the following **14** described courses:

1. S01°00'00"E, 85.34 feet;
2. N88°58'26"E, 254.82 feet;
3. N88°58'26"E, 133.21 feet;
4. S45°58'59"E, 42.41 feet;
5. S01°03'02"E, 1028.62 feet;
6. S31°03'21"E, 810.01 feet;
7. S15°26'06"E, 419.15feet;
8. S00°58'35"E, 799.95 feet;
9. N88°05'44"E, 40.00 feet;
10. S00°58'34"E, 2115.51 feet;
11. S89°07'16"W, 113.07 feet;
12. S82°06'35"W, 375.14 feet;
13. S89°00'11"W, 384.60 feet;
14. S00°37'49"E, 70.37 feet to a point on the south line of the southwest quarter of said Section 8;

Thence on said south line of the southwest quarter of Section 8 S88°59'43"W, 2427.60 feet to the point of beginning.

* * * * *